

Subject: Information Provided by the Local Agency at Certification

Item: WIC Participant Rights and Responsibilities

PURPOSE:

To ensure that family representative/caretakers are informed of their rights and responsibilities for participation in the WIC program.

POLICY:

- I. Local agency (LA) staff must ensure that the family representative/caretaker reads the *Know Your Rights and Responsibilities (R&R)* form, watches the *R&R* section of the Welcome to WIC video, or has, the approved summary of the *R&R* read by LA staff, understands and signs at initial certification, recertification, and when transferring from out-of-state with a verification of certification (VOC).

PROCEDURES:

- I. Once eligibility has been determined at initial certification or recertification, LA staff must do the following:
 - A. Ensure that the family representative/caretaker reads the *R&R* form, watches the *R&R* section of the Welcome to WIC video, or has the approved summary of the *R&R* read by LA staff.
 1. When the *R&R* is read by the family representative/caretaker or the video is watched, LA staff must:
 - a. Verify that the *R&R* was read or the video was watched.
 - b. Read all of the information in the signature box to the family representative/caretaker.
 - c. Ensure understanding by asking if there are any questions and provide answers if necessary.
 - d. Give a copy of the *R&R* form to the family representative/caretaker, if requested.
 2. When the *R&R* is not read by the family representative/caretaker, LA staff must:
 - a. Offer more time to the participant to read the *R&R* or to watch the video. If not, LA staff must read the approved summary of the *R&R* to the participant.
 - b. Read all of the information in the signature box to the family representative/caretaker.
 - c. Ensure understanding by asking if there are any questions and provide answers if necessary.
 - d. Give a copy of the *R&R* form, if requested.
 - B. Have the family representative/caretaker electronically sign *R&R* in WIC WISE to certify they understand their rights and responsibilities.

CERTIFICATION

WPPM #260-40

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- C. The electronic signature is retained in WIC WISE.
- D. When electronic signature cannot be obtained or LA staff cannot document verbal confirmation to write in the e-signature box on the family representative/caretaker's behalf, a signed *R&R* must be scanned into WIC WISE. Refer to WPPM 1000-140.
- II. LA staff cannot require the family representative/caretaker to sign any LA-created agreements or contracts as a condition of program participation, in addition to the *R&R* form, unless approved by CDPH/WIC.

AUTHORITY:

[7 C.F.R. §246.7\(i\)\(10\)](#)

[7 C.F.R. §246.7\(j\)](#)

22 C.C.R. §40681

22 C.C.R. §40813

RESOURCE:

R&R Summary Job Aid (English)

R&R Summary Job Aid (Spanish)

CROSS REFERENCE:

WPPM 1000-140 WIC WISE Forms Job Aid